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AS AMENDED

By: Pugh and Kern

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1 B. The annual report as required pursuant to subsection A of
2 this section shall identify school sites as having one of the
3 following grades for each indicator, separately, and by a single
4 overview grade of all indicators, defined according to rules of the
5 State Board of Education:

6 1. "A" means schools making excellent progress;

7 2. "B" means schools making above average progress;

8 3. "C" means schools making satisfactory progress;

9 4. "D" means schools making less than satisfactory progress;

10 and

11 5. "F" means schools failing to make adequate progress.

12 C. Each school that has students who are tested and included in
13 the school grading system as provided for in this section shall
14 receive a school grade, except as follows:

15 1. A school shall not receive a school grade if the number of
16 students tested and included in the school grading system is less
17 than the minimum sample size necessary for statistical reliability
18 and prevention of the unlawful release of personally identifiable
19 student data. The State Board of Education is directed to establish
20 the lowest minimum sample size necessary to meet the requirements of
21 this paragraph; and

22 2. The academic performance of students who are enrolled full-
23 time in an online program that is offered by a school district or
24 charter school that is not the district of residence or is not

1 located in the district of residence of the student shall be
2 reported separately by the school district or charter school and
3 shall not be included when determining the grade of the school site
4 or charter school.

5 D. The State Board of Education may adopt alternate systems of
6 accountability for statewide virtual charter schools, alternative
7 education programs as defined in Section 1210.568 of this title, and
8 schools serving only grades prekindergarten or kindergarten through
9 two.

10 E. The grade of a school shall be based on a multimeasures
11 approach to accountability in accordance with the Elementary and
12 Secondary Education Act of 1965 (ESEA) as reauthorized by P.L. No.
13 114-95, also known as the Every Student Succeeds Act (ESSA) and any
14 federal regulations that include, but are not limited to, the
15 following indicators:

16 1. Statewide assessments, including the establishment of
17 student performance bands;

18 2. Graduation rates for high schools;

19 3. Statewide academic measures for elementary and middle
20 schools;

21 4. English language proficiency for English learners; and

22 5. At least one additional statewide measure of school quality
23 or student success, including, but not limited to, school climate,
24

1 school safety, student engagement, educator engagement, and/or
2 advanced coursework and postsecondary readiness.

3 F. Of the indicators included in subsection E of this section,
4 not less than seventy percent (70%) of the overview grade ~~must~~ shall
5 be given to indicators 1, 2, 3, and 4 and, in the aggregate, with
6 not more than thirty percent (30%) of the grade given to indicator
7 5.

8 G. Further, the grade of an elementary or middle school site
9 shall include, but not be limited to, a measure of status for
10 English language arts (ELA), math, and science, growth in ELA and
11 math, ~~English Language Proficiency Assessment~~ language proficiency
12 assessment (ELPA) progress, and ~~chronic absenteeism~~ climate surveys
13 administered to students, school staff, and parents and legal
14 guardians of students enrolled in the school site.

15 H. The grade of a high school site shall include, but not be
16 limited to, a measure of status for English language arts (ELA),
17 math, and science status, ~~English Language Proficiency Assessment~~
18 language proficiency assessment (ELPA) progress, graduation rate,
19 ~~chronic absenteeism, and postsecondary opportunities, and climate~~
20 surveys administered to students, school staff, and parents and
21 legal guardians of students enrolled in the school site. For
22 purposes of this section, postsecondary opportunities shall include
23 ~~Advanced Placement~~ advanced placement, International Baccalaureate,
24 dual and concurrent enrollment, internships, mentorships and

1 apprenticeships, and industry certifications. The Board shall adopt
2 a ~~time line~~ timeline for moving from completion of such
3 opportunities to crediting achievement of such opportunities.

4 I. Elementary, middle, and high school sites shall be eligible
5 for bonus points to be used in the calculation of the site's single
6 overview grade if the school site provides in-person classroom
7 instruction in excess of the requirements of Section 1-109 of this
8 title.

9 J. The annual report shall identify the performance of each
10 school as having improved, remained the same, or declined. This
11 school improvement rating shall be based on a comparison of the
12 student and school performance data of the current year to the
13 previous year data.

14 ~~J.~~ K. The State Department of Education shall annually develop
15 a school site report card to be delivered to parents or legal
16 guardians throughout each school district. The report card shall be
17 in accordance with the requirements of the Elementary and Secondary
18 Education Act of 1965 (ESEA)~~7~~ as reauthorized and amended by P.L.
19 No. 114-95, also known as the Every Student Succeeds Act (ESSA) and
20 ~~includes~~ include the grade for the school, information regarding
21 school improvement, an explanation of school performance, and
22 indicators of return on investment. The report card for each school
23 site shall be published annually by the Department on its website,
24 and every school district shall provide the school site report card

1 to the parent or legal guardian of each student enrolled in the
2 school site. In order to provide information regarding school
3 performance for school report cards issued during the 2016-2017 and
4 2017-2018 school ~~year~~ years, the Department shall include an
5 explanation of the changes to the statewide system of student
6 assessments as required in Section 1210.508 of this title and how
7 the transition in assessments may impact school performance. The
8 Department shall issue school report cards using the 2016-2017
9 school year assessment data that is available.

10 ~~K.~~ L. The Legislature may factor in the performance of schools
11 in calculating any performance-based funding policy that is provided
12 to public school districts.

13 ~~L.~~ M. The State Board of Education shall promulgate rules to
14 implement the provisions of this section.

15 SECTION 2. This act shall become effective July 1, 2025.

16 SECTION 3. It being immediately necessary for the preservation
17 of the public peace, health, or safety, an emergency is hereby
18 declared to exist, by reason whereof this act shall take effect and
19 be in full force from and after its passage and approval.

20 COMMITTEE REPORT BY: COMMITTEE ON EDUCATION
21 February 11, 2025 - DO PASS AS AMENDED
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